

Stereo H.C.J.D.A.38

JUDGMENT SHEET

IN THE LAHORE HIGH COURT,

MULTAN BENCH MULTAN

JUDICIAL DEPARTMENT

RFA No. 98 of 2013

Qari Muhammad Yasin

Appellant

versus

Abdul Latif etc.

Respondents

JUDGMENT

Date of hearing

23.04.2018

Appellant by	Rao Muhammad Iqbal, Advocate.
Respondents by	Mr. Jahangir Ali Sheikh, Advocate for respondent No.22.
	Mr. Muhammad Asghar Bhutta, Advocate for respondent No.6,7 and 9.
	Mr. Shakeel Javaid Chaudhry, Advocate for respondent Nos. 20, 25, 26 and 29.
	Mr. Waseem Mumtaz, Advocate for respondent Nos. 19, 23 and 24.
	Mr. Rahat Masud Tipu, Advocate for respondent No.13.

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MUZAMIL AKHTAR SHABIR, J.- Through this appeal under Section 96 of Code of Civil Procedure, 1908, judgment and decree dated 28.03.2013 passed by Civil Judge, Multan has been

called in question whereby the suit for recovery of Rs. 40-crores as damages filed by appellant was dismissed.

2. The brief facts of the case are that the appellant passed his Secondary School Certificate examination (SSC) in the year 1969 under Roll No. 8059 from Board of Intermediate & Secondary Education, Multan (“**Board**”) and Certificate No. S.S.C.023321 dated 30.11.1969 was issued in his favour. The appellant later on passed PTC examination and joined Government Primary School, Basti Maan on 01.06.1972 as PTC Teacher. The appellant obtained NOC for ex-Pakistan leave in the year 1981 and got admission in Islamic University Madina Munawara, Saudi Arabia. The appellant passed MA Arabic and MA Tafseer-ul-Quran and he also performed his duties as “**IMAM**” and teacher in *Masjid-e-Nabvi* and *Masjid-e-Hasaan Bin Sabit* till 1989. The appellant claims that Abdul Latif, the respondent No.1 is his close relative and was residing in Saudi Arabia who developed enmity with the appellant because of marriage of the appellant with Siddiq Bibi as respondent No.1 himself wanted to marry her in order to get hold of possession of land owned by her father Gull Muhammad. Due to this enmity, the respondent No.1 by using fictitious name of Umar Din, filed a complaint on the basis of false allegations and got secretly cancelled the Secondary School Certificate of the appellant, with the result that his career in Saudi Arabia was adversely affected and he and his family had to suffer immensely. The appellant thereafter through Constitutional Petition

bearing WP No. 3661 of 2005 challenged the order of the Board dated 14.05.2005, whereby his result was cancelled. The said petition was allowed on 06.10.2005 and the order, cancelling result of the petitioner, was set aside but the appellant was directed to get his claim for compensation resolved from the civil court. The appellant thereafter filed a suit for recovery of Rs. 40 Crores as damages against the respondent No.1 and other respondents who are employees of Board of Intermediate and Secondary Education, Multan. The suit filed by appellant was contested by the respondents, which was ultimately dismissed on 28.03.2013. The said judgment and decree is under challenge in this appeal.

3. The learned counsel for the appellant has argued that it was found by this Court in WP No. 3661 of 2005 that the Secondary School Certificate of the appellant was wrongly cancelled and the said order was declared as void. As the order of cancellation of result had been passed at the behest of respondent No.1, by officials of the respondent Board, they were all jointly and severally liable to compensate the appellant for loss and damage suffered by him for their acts. Conversely, the counsels for the respondents have supported the order of the trial court whereby the suit of the appellant was dismissed and reiterated the reasons recorded therein and denied that the respondents are liable to pay compensation as damages.

4. The claim of the appellant is for recovery of Rs.40 Crores as damages against the respondents who are mostly employees of the

Board for wrongly cancellation of his result which has caused adverse effects on the appellant and his family. The appellant has split his claim in categories dependant on various factors i.e. loss of complainant on account of his suspension, loss of future of complainant's children, loss in domestic affairs, mental disturbance and illness and defamation and loss of reputation in society due to cancellation of his matriculation certificate by the employees of the Board at the behest of respondent No.1 through a fictitious person Umer Din.

5. The matric certificate of the appellant had been cancelled by the employees of the Board while working in their official capacity as representatives of the Board but the Board itself has not been impleaded as a defendant/party to the suit for damages although it is an independent legal body that can sue and can be sued in its own name. The employees of the Board only have been impleaded as defendants. Besides Umer Din, the complainant on whose application result of the appellant had been cancelled has not been impleaded as a party. It has been explained that he has not been impleaded as a party for the reason that suit for damages has been filed against the employees of the Board and not against the complainant who had merely filed an application and was a fictitious person having no existence whereas the illegality had been committed by the employees of the Board. Be that as it may, unless Umer Din was impleaded as a party or some connection was established between respondent No.1

and said Umer Din to show that at the behest of respondent No.1, the said Umer Din had acted against the appellant, the chain of events would not be complete.

6. Although it is settled by now that a suit cannot be dismissed by non-joinder of parties as held in Mst. Rani vs. Mst. Razia Sultana (1994 SCMR 2268) and Anoud Power Generation Limited and others vs. Federation of Pakistan and others (PLD 2001 SC 340) but the said principle is subject to an exception that where a necessary party is not impleaded, the decree may not be binding on party. Reliance is placed on Ghulam Ahmad Chaudhry vs. Akbar Hussain through legal heirs (PLD 2002 SC 615). The Supreme Court in this case observed as under:

“8. A wide judicial discretion is vested in the Court to add parties at any stage of the suit in whose absence no effective decree can be passed. It may be observed that where a necessary party is not impleaded, the decree may not be binding on it. Likewise, a person against whom no relief is asked for, may not be a necessary party but he may be a proper party. For the purpose of addition of parties, the Court is governed by provisions of Order I, rule 1 and 2 and Order II, rule 3, C.P.C. In law a Court is empowered to bring on record only necessary or proper parties. Once a suit has been instituted, parties can be added only with the leave of the Court and not otherwise.”

7. The appellant did not make any attempt to implead Umer Din as a party despite the fact that he was proper and necessary party,

therefore, the appellant has failed to establish any *mala fide* against the employees of the Board for cancellation of his result.

8. The claim against the Board employees had to be established through convincing evidence. The Defendant's Nos.1, 12, 18 and 27 had died during the pendency of the suit so the trial court dismissed the claim to their extent on the basis of maxim that personal wrong dies with person. The trial court was right in dismissing the suit to their extent. Reliance is placed on **Mir Shakeel ur Rehman vs. Yahya Bakhtiar** (PLD 2010 SC 612) wherein it is held that personal action dies with the death of either of the parties. Some of the respondents have also died during the pendency of appeal against dismissal of suit including the respondent No.1, Abdul Latif, who is alleged to be the master mind of the whole scheme to cancel the appellant's result with mala-fide intention. The same principle would be applicable to the case of respondents who have died during the pendency of the appeal and cause of action against them would automatically terminate and proceedings against them would abate.

9. No specific role was ascribed to the defendant Nos. 2 to 5, 7 to 20 and 25 to 29 in the suit, who are respondents herein. The appellant even failed to establish that the said respondents were directly or vicariously liable. Therefore, claim to the extent of those respondents was also rightly dismissed.

10. The only persons who were directly linked to cancelling the Secondary School Certificate of the appellant were Respondent Nos.

6, 21 to 24. The respondent No.6 had forwarded application to the Board for consideration. He was merely performing his duty in good faith to forward the case to the disciplinary committee and had done nothing else. The appellant has failed to establish any mala fide intention on his part for proceeding against him. Besides, he did not participate in the proceedings initiated by the Board or did not appear as a witness against the appellant in the said proceedings. Therefore, the claim to this extent relating to any action against the said respondent is unsubstantiated.

11. The respondents / defendants nos. 21 to 24 conducted inquiry against the appellant being members of Disciplinary Committee as per law and rules. None of these members had personally known the appellant to have any mala fide intention in their minds to proceed against the appellant. The committee issued notice to the appellant to appear before disciplinary committee and on his non-appearance had decided the case on the basis of material available with them. It cannot be said that they proceeded with grudge and mala fide intention against the appellant. Besides they were performing their duties in good faith. Sections 29 and 31 of the Punjab Boards of Intermediate & Secondary Education Act, 1976 provides protection to Board, its members, officers and employees for the acts done or proceedings taken in pursuance of provisions of the said Act in good faith and the jurisdiction of the courts has been barred under the Act. Mala fide on behalf of the Board, its member, officers and employees

has not been established by any cogent evidence available on the record. Therefore having *bona-fidely* done all the acts, it cannot be said that their action was deficient of good faith or against the provisions of the Act or rules and regulations made there under. Reliance in this regard is placed on **Muhammad Rafiq vs. The Board of Intermediate & Secondary Education and others** (1983 SCMR 1024), the relevant portion of which is reproduced below:

“Sections 29 and 31 of West Pakistan Boards of Intermediate and Secondary Education (Multan and Sargodha) Ordinance VII of 1968, reads as follows:

“Section 29.---Bar of suit, ---No acts done, orders passed or proceedings taken by a Board in pursuance of the provisions of this Ordinance shall be called in question in any Court by a suit or otherwise.”

“Section 31.----Protection of acts and orders under Ordinance.--- No suit for damages or other legal proceeding shall be instituted against Government, the Controlling Authority the Board, any committee, any member of the Board or committee, or officer or employee of the Board in respect of anything done or purported to have been done in good faith in pursuance of this Ordinance and the Regulations and rules made thereunder.”

Section 29 ousts the jurisdiction of civil Court when the action is in pursuance of the provisions of the Ordinance. While Section 31 amongst others makes provision for exclusion, of the jurisdiction of the civil Court when the action may not be strictly in accordance with the relevant provisions but only purports to be in accordance therewith. However, in that case it should have been done in good faith. There is nothing in this case to establish lack of good faith. That being so, the mere

fact that according to the petitioner, the appeal was ultimately decided in a wrong manner would not confer jurisdiction on a civil Court. The intention of the law maker is obvious.”

Therefore, the official respondents while *bona fide* working in official capacity could not be proceeded against for damages as they were protected under Sections 29 and 31 of the Act, hence, the claim to their extent is also not supported by evidence available on record and law on the subject.

12. Besides the appellant has based his claim for damages on the basis of the following categories:

(i)	Loss of complainant on account of his suspension	Rs.30,00,000/-
(ii)	Loss of future of complainant’s children	Rs.38,00,00,000/-
(iii)	Loss in domestic affairs	Rs.20,00,000/-
(iv)	Mental disturbance and illness	Rs.50,00,000/-
(v)	Defamation and loss of reputation in society	Rs.10,00,00,000/-
	Total	Rs.40,00,00,000/-

The learned counsel for the appellant was required to show what evidence the appellant has led to prove afore referred claims. The learned counsel has relied upon statement of appellant as PW-1 who in his statement although reiterated the contents of the plaint but did not utter a single word as to what loss and damage he has suffered on account of his suspension, future of his children, loss in domestic affairs, mental disturbance and illness and defamation and loss of reputation in the society and also failed to substantiate the amount of compensation required to restore him to his original status and position. He claimed that his family had suffered adversely without

leading any evidence to strengthen his plea. In support of his claim, he produced Muhammad Yar as PW-2 and Mirza Azhar Mehmood, who is a teacher as PW-3 who supported the appellant's claim that he himself had appeared in the exams and the appellant was of a good character and was entitled to be compensated through damages of Rs.40-Crores, breakup of which was also not established by the said witnesses. Nothing is available on the record to establish the loss and damage actually suffered by the appellant. The claim to the extent of special damages is to be proved by providing details of the actual damages suffered. Reference may be placed on **Malik Gul Muhammad Awan vs. Federation of Pakistan** (2013 SCMR 507) where in it has been laid down that a person claiming special damages has to explain each item of loss with reference to evidence brought on record.

13. In the case of **Abdul Majeed Khan vs. Tawseen Abdul Haleem** (PLD 2012 SC 80), the Supreme Court held as under:

“In an action for personal injuries, general damages are governed by the rule of thumb whereas special damages are required to be specifically pleaded and proved. ---- Special damages consist of out-of-pocket expenses and loss of earning incurred down to the date of trial and is generally capable of substantially exact calculation. ---- Basic principle, so far as loss of earning and out-of-pocket expenses are concerned, is that injured person should be placed in the same financial position, so far as can be done by an award of money he would have, had the accident not happened.”

14. As the appellant has failed to establish his case for special damages, therefore, he is not entitled for the same. The appellant has not prayed for general damages, hence, the same cannot be granted.

15. For what has been discussed above, we find no force in this appeal therefore, the same is ***dismissed***.

(Ibad-Ur-Rehman Lodhi)
Judge

(Muzamil Akhtar Shabir)
Judge

Naveed*